

## **STATEMENT OF WORK NUMBER 01**

This Statement of Work Number 01 ("SOW") is made pursuant to the Manpower Staffing Service Agreement dated 28 April 2025 ("Master Agreement") signed and executed between TLG INDIA PRIVATE LIMITED (through its division Publicis Sapient) and Kudzu Infotech Private Limited ("Service Provider")

All the terms of the Master Agreement are incorporated herein by reference. Any terms used herein but not defined shall have the meaning ascribed to such terms in the Master Agreement. Except for the terms relating to scope of services, in the event of any conflict/ contradiction/ ambiguity between the terms and conditions of the Master Agreement and the terms of this SOW, then the terms of the Master Agreement shall prevail over the terms and conditions of this SOW.

**1. Details of Services**

- (a) Manpower staffing involving Service Provider deploying the concerned Service Provider Personnel with Company and/ or its clients based on the requirements of Company; and
- (b) Recruitment facilitation services involving Service Provider sharing suitable CV's/ resume's of candidates with the Company pursuant to the job openings with the Company and the candidate requirements for such job openings which are made known & available to the Service Provider by the Company.

**2. Type/ designation of Service Provider Personnel deployed:**

Associates / Senior Associates / Arch Personnel

**3. Service Provider Personnel skill set:**

IT/ non-IT skill set

**4. Deliverables:**

To be specified by Company separately in writing to the Service Provider from time to time for each Service Provider Personnel deployed by Service Provider, in the Company's reasonable discretion.

**5. Term of SOW Attachment**

The term of the SOW will be valid till 27 April 2028.

**6. Attachment**

To be specified by Company from time to time for each person supplied by the Service Provider, in the Company's reasonable discretion.

**7. Company office location(s) where services will be delivered:**

| S. No.              | Company Office Address                                                                                                                                                                           |
|---------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| TLG India Pvt. Ltd. | 3rd Floor, Tower-C, Plot No.7 Oxygen Business Park Pvt Ltd SEZ Sector-144, Expressway, Noida Uttar Pradesh-201 301                                                                               |
| TLG India Pvt. Ltd. | Ground to 9 <sup>th</sup> Floor, Tower-B, Building No. 8, Gurgaon Infospace Ltd SEZ, Sector 21, Village Dundahera, Gurgaon                                                                       |
| TLG India Pvt. Ltd. | 4th, 6th and 8th Floor, VIRGO Block Wing B, Bagmane Constellation Business Park, Doddanekundi Village K.R. Puram Hobli, Bangalore East taluk Marathahalli Ring Road, Bangalore Karnataka-560 037 |
| TLG India Pvt. Ltd. | 15th floor, Tower A, Urmi Estate, 95 Ganapat Rao Kadam Marg, Lower Parel, Mumbai City, Maharashtra-400 013                                                                                       |
| TLG India Pvt. Ltd. | Malpani Agile, Smart Works, Banner Road, Pan card club road, Pune, Pune, Maharashtra-411 045                                                                                                     |

|                     |                                                                                                                                                   |
|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------|
| TLG India Pvt. Ltd. | 3rd Floor, Awfis Space solutions, Oyster Complex, Greenlands, Road Somajiguda Begumpet, Hyderabad, Telangana-500 016                              |
| TLG India Pvt. Ltd. | Divyasree Trinity, 5th floor Block 4, Plot no 5 and 6 Hitech City Rd, Madhapur, Hyderabad Telangana-500 081                                       |
| TLG India Pvt. Ltd. | COWRKS India Pvt Ltd, 5th Floor, Campus 3B Millenia Business Park, Phase 2, MGR Main Rd, Kandhanchavadi, Perungudi, Chennai, Tamil Nadu – 600 096 |

## 8. Fee & Expenses

- (a) **Service Fee (Cost plus markup model):** For each & every Service Provider Personnel and/ or contract workers who are deployed and /or specifically working for the Company, the Service Provider shall charge to the Company the total monthly cost for each & every Service Provider Personnel and/ or contract workers (which includes their monthly salary/ wages and any other applicable statutory dues/ benefits or pay-out as pre-approved in writing by Company) along with a **20% mark-up** over such monthly cost.

- (b) **Recruitment Fee (for FxTE)**

The Service Provider shall also provide recruitment facilitation services as & when required by the Company. The Company shall share in writing with the Service Provider either the Company's and/ or its Client's specific requirements for hiring a candidate as a Company employee. Post receipt of such requirements from the Company, the Service Provider shall identify suitable candidates from any candidate talent pool and/ or any job portal websites who meet the requirements of the Company and share formally via email to such candidate(s) profile/ CV to the Company. No recruitment fee shall be payable in case of duplicity of profile or CV of any candidate(s) shared by the Service Provider whose profile or CV is already present with the Company. The Company shall provide a written confirmation to the Service Provider in case the Company or its Client has finalized and is about to hire any candidate(s) who have been identified and whose profile/ C.V. has been shared by the Service Provider. Accordingly for such cases the Company and/ or its Client (via the Company) has hired any such candidate(s) who have been first identified by the Service Provider and whose profile/ CV was shared by the Service Provider to the Company, the Company shall pay to the Service Provider the requisite recruitment fee amount as payable for each such candidate hired:

| Designation / Grade / Level    | Recruitment Fee                         |
|--------------------------------|-----------------------------------------|
| All designation/ grade/ levels | An amount equivalent to 7% of the ACTC* |

**\*\*Annual Cost to Company (ACTC)** shall include Applicant's annual basic salary (Basic Salary, HRA, LTA, Fixed Bonuses, Special Allowance inside salary component) at the point of Engagement and excludes any emoluments, bonuses, commission or benefits in kind (pensions, healthcare, car schemes etc).

No recruitment fee shall be payable in case of duplicity of profile or CV of any candidate(s) shared by the Service Provider whose profile or CV is already present with the Company. Further if any such Service Provider recommended candidate(s) [who has been hired by the Company or its Client] employment is terminated within first ninety (90) calendar days from the date of joining of such candidate or if the candidate himself resigns and leaves within ninety (90) days from his date of joining then the Company shall the Service Provider about the same and the Service Provider shall provide a suitable replacement candidate to the satisfaction of the Company within thirty (30) days from the date of leaving of the original candidate at no additional cost or requiring payment of any recruitment fee for such replacement candidate provided. Service provider shall refund the full amount if service provider is unable to provide replacement within 30 days.

- (c) **Absorption/ Conversion Fee**

- (i) In case if any of the Service Provider Personnel are absorbed or converted by the Company onto its own payroll and/ or transferred onto the payroll of any third party within 0-3 months from the date of engagement/ joining of such Service Provider Personnel and/ or contract workers then the Company can do so post making an Absorption/ Conversion Fee payment equivalent to 4.5% of the annual base salary of such Service Provider Personnel and/ or contract workers being absorbed or converted. The Service Provider agrees as long as the

Company enforces its right under this clause and agrees to pay the requisite Absorption/ Conversion Fee amount payable, no separate or formal written consent is required from the Service Provider for the Company to absorb or convert any of the Service Provider Personnel to either the Company own payroll or onto the payroll of any third party (including the Client). The Service Provider shall provide all assistance required to facilitate the same including but not limited to providing on a timely basis the necessary exit documentation and making full & final payment to the concerned Service Provider Personnel who is being absorbed by the Company or its Client.

- (ii) In case if any of the Service Provider Personnel are absorbed or converted by the Company onto its own payroll and/ or transferred onto the payroll of any third party after the first 3 months from the date of engagement/ joining of such Service Provider Personnel and/ or contract workers then the Company can do so without paying any Absorption/ Conversion fee to the Service Provider. The Service Provider shall provide all assistance required to facilitate the same including but not limited to providing on a timely basis the necessary exit documentation and making full & final payment to the concerned Service Provider Personnel who is being absorbed by the Company or its Client.

- (d) **Expenses:** To be reimbursed in accordance with the mutually agreed terms specified in the SOW.

## 9. Invoice and Payment Addresses

- (a) **Payment of Service Provider invoices:** Invoices raised by Service Provider (for Service Fee, Recruitment Fee Absorption/ Conversion Fee and any other mutually agreed amounts as applicable) shall be paid by the Company within 30 days from the date of receipt of a correct & undisputed invoice.

- (b) **Invoicing Address:**

Service Provider shall send all invoices to: TLG India Private Limited (Publicis Sapient division)  
TLG India Private Limited Candor TechSpace, Tower B Building 8, Sector -21, Old Delhi – Gurgaon Road, Dundahera Gurgaon, Haryana -122016

- (c) **Payment Address:**  
Ground Floor, Beta Block, Sigma Soft Tech Park Circle, Varthur Kodi, Whitefield, Bengaluru, Karnataka 560066.

## 10. Transition/ rebadging of Service Provider Personnel:

In the event the Service Provider fails to maintain the required labour law & other compliances as required under this Agreement for a period of three (3) consecutive calendar months, the Company (in addition to its other rights under the Agreement and/ or this SOW) reserves the right to transition/ rebadge the Service Provider Personnel (deployed with the Company and/ or its client) from the employment/ payroll of the Service Provider to the employment/ payroll of an alternate staffing vendor/ service provider within a thirty (30) days' notice period for such transition/ rebadging and without the Company having to pay any separate or additional amount to the Service Provider for such transition/ rebadging. In the event of such transition/ rebadging of Service Provider Personnel, the Service Provider shall fully cooperate & assist the Company in facilitating a smooth transition, including but not limited to the Service Provider:

- (a) ensuring timely payout of full & final settlement payout from the Service Provider to the Service Provider Personnel being transitioned/ rebadged,
- (b) sharing/ transferring all relevant documentation and knowledge to the Company & the Service Provider Personnel being transitioned/ rebadged which is necessary to ensure continuity & uninterrupted service delivery

## 11. Penalties.

- **Delay in Replacement of Manpower:** In the event of resignation, absenteeism, or removal of any deployed personnel, the Vendor shall ensure replacement within 15 (Fifteen) working days from the date of such incident. Failure to provide a replacement within the stipulated period shall attract a penalty of 0.25% of the monthly bill rate per day per resource of delay, subject to a maximum of 10% of the invoice value for that month.

- Timelines for completing background verification: The Service Provider shall complete the background verification for each candidate within **15 calendar days** from the date of receipt of the complete set of required documents. Any delay beyond this period shall be considered a breach of agreed service levels.
  - Compliance Audit Penalty: In the event of non-compliance by the Vendor, including but not limited to errors, omissions, or delays in the submission of compliance-related documents, the Vendor shall be liable to pay a penalty of INR 1,200 for each additional audit session necessitated as a direct result of such non-compliance.
- **Penalty for delay in completing background verification:**
    - In case of delay in submission of the background verification report beyond the stipulated timeline, the following penalties shall be levied:
      - Delay of **1–5 calendar days**: Penalty of **₹500 per case per day** of delay.
      - Delay of **6–10 calendar days**: Penalty of **₹750 per case per day** of delay.
      - Delay of **beyond 10 calendar days**: Penalty of **₹1,000 per case per day** of delay.
  - **Cumulative Cap:**
    - The cumulative penalty for delays in a given month shall be capped at **10% of the total monthly invoice value** submitted by the Service Provider.
  - **Exceptions:**
    - No penalty shall be levied if the delay is due to:
      - Incomplete or incorrect documentation shared by the candidate or client.
      - Delays caused by government/public institutions (e.g., universities, courts, police stations) which are outside the control of the Service Provider, provided such delays are formally communicated with adequate supporting proof.
  - **Right to Review:**
    - The Company reserves the right to review the overall service performance quarterly. Repeated delays or pattern of poor performance may lead to:
      - Formal notice for non-compliance
      - Withholding of payments
      - Termination of agreement as per contract terms

## 12. Purchase Orders

The Company will issue a Purchase Order to Service Provider for each Service Provider Personnel and/ or contract workers supplied by Service Provider under this Attachment D. Each Purchase Order shall specify the following:

- The type of Service Provider Personnel being provided (see Section 1 above).
- The name and other personal details of the Service Provider Personnel being deployed.
- The expected duration (start & end date) of the work assignment/ project in which the Service Provider Personnel will be working on.
- The monthly cost to be paid for each such Service Provider Personnel.
- If & where applicable the concerned Company client for whom the Service Provider Personnel will be deployed with and working for.

- Each Party acknowledges that it has read this SOW, understands it, and agrees to be bound by its terms and conditions.

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